

ELIZABETH II



1972 CHAPTER xi

An Act to confer powers upon the mayor, aldermen and burgesses of the county borough of Solihull with regard to finance; and for other purposes. [12th June 1972]

WHEREAS—

(1) The borough of Solihull (in this Act called “ the borough ”) is a county borough under the management and local government of the mayor, aldermen and burgesses of the borough (in this Act called “ the Corporation ”):

(2) It is expedient to make further and better provision with respect to the local government of the borough and the finances of the Corporation:

(3) It is expedient that the other provisions in this Act should be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. (5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title. 1. This Act may be cited as the Solihull Corporation Act 1972.

Interpretation. 2.—(1) In this Act, except as otherwise expressly provided or unless the subject or context otherwise requires—

“ the Act of 1933 ” means the Local Government Act 1933;

“ the borough ” means the county borough of Solihull;

“ the Corporation ” means the mayor, aldermen and burgesses of the borough;

“ the council ” means the council of the borough;

“ enactment ” means any enactment whether public general or local and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“ financial year ” means a period of twelve months ending on 31st March;

“ gross rate income ” means the gross rate income as used in the determination of the product of a rate of one new penny in the pound under rules made pursuant to section 113 of the General Rate Act 1967;

1967 c. 9.

“ signature ” includes a facsimile of a signature by whatever process reproduced.

(2) Any reference in this Act to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

Power to
raise money
by bills.

3. In addition to the modes of borrowing prescribed by the Act of 1933, the Corporation may raise money—

(1) for any purpose for which the Corporation are authorised to borrow;

(2) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Corporation may properly be applied;

by means of bills (to be called “ Solihull Corporation bills ”, in this section referred to collectively as “ bills ” and separately as a

“ bill ”) subject to, and in accordance with, the following provisions:—

- (a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
- (b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Corporation may determine:
- (d) Bills shall be issued under the authority of a resolution passed by the council, and shall bear the signature of the treasurer of the borough or of some other person authorised by the Corporation:
- (e) The Corporation may make regulations providing for—
 - (i) the preparation, form, mode of issue, payment and cancellation of bills;
 - (ii) the issue of new bills in lieu of bills defaced, lost or destroyed;
 - (iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills; and
 - (iv) the giving of a proper discharge on the payment of a bill:
- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
- (g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—
 - (i) the sum of seven hundred and fifty thousand pounds; or
 - (ii) one-fifth of the amount of the estimated gross rate income of the borough during the then current financial year;whichever is the greater:
- (h) Subject to the provisions of the last preceding paragraph, the Corporation may renew a bill at maturity:

- (i) The Corporation may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Corporation to borrow shall be suspended to the extent of the amount which has been raised for capital purposes by the issue of bills.

Protection of
members and
officers of
Corporation
from
personal
liability.
1875 c. 55.

4. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

Application of
provisions of
Public
Health Act
1936.
1936 c. 49.

5. Sections 286 and 328 of the Public Health Act 1936 shall have effect as if references therein to that Act included references to this Act.

Costs of Act.

6.—(1) The costs, charges and expenses preliminary to and of and incidental to the applying for, and the preparing, obtaining and passing of this Act shall be paid by the Corporation and the Corporation shall have power without the consent of any sanctioning authority to borrow the sum required for the payment thereof and shall repay the sum so borrowed within such period as they may determine not exceeding ten years from the date of borrowing.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section for the repayment of the money borrowed shall as respects that money be the fixed period for the purpose of the said Part IX.

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